

discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to timely meet and confer regarding the Discovery Requests, the Court finds that Ms. Leone did not act with substantial justification. Furthermore, the Court does not find any other circumstances that would make the imposition of monetary sanctions unjust.

Disposition

The Court finds and rules as follows:

1. The Motion for Protective Order is GRANTED.
2. Ms. Leone shall pay monetary sanctions to CMD in the amount of **\$1,935.00** (the “Monetary Sanctions”). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys’ fees, incurred by CMD as a result of the foregoing conduct by Ms. Leone. In fixing said amount, the Court has considered all evidence in the record before the Court on the motion, including the supporting declaration of the moving party. The Monetary Sanctions shall be paid by Ms. Leone within thirty (30) calendar days of notice of entry of this order.
3. The Court shall issue the order after hearing.

3. 9:00 AM CASE NUMBER: C23-01955

CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE

***HEARING ON MOTION IN RE: VACATE FEBRUARY 2, 2026, BENCH TRIAL AND JURY TRIAL WAIVER
FILED BY: LEONE, MISTY**

TENTATIVE RULING:

Defendant and cross-defendant Misty Leone (“Ms. Leone”) filed a Motion to Vacate February 2, 2026 Bench Trial on November 3, 2025 (the “Motion to Vacate Bench Trial”). The Motion to Vacate Bench Trial was set for hearing on March 16, 2026. Notice of the motion was duly given. Subsequently, the Court advanced the hearing date on the motion to January 26, 2026. See Order entered January 20, 2026. The motion is opposed.

Background

At the Case Management Conference on October 23, 2025, a court trial was set by the Court regarding a bifurcated issue (the “Bifurcated Issue”). See Minute Order dated October 23, 2025. At a subsequent Issue Conference, the Court conferred with the parties regarding the Bifurcated Issue and all parties and counsel concurred that the scope of the Bifurcated Issue and the trial thereon is the nature and extent of plaintiff Nicole D. Trippie's ownership interest in the entity defendant CMD Saloon, LLC under the Operating Agreement and otherwise. Order entered January 20, 2026. The court trial on the Bifurcated Issue is set for February 2, 2026 (the “Bench Trial”).

Ms. Leone’s Motion to Vacate Bench Trial seeks to vacate the Bench Trial and convert the Issue Conference set in connection with the Bench Trial to a regular CMC. Ms. Leone contends that the Bench Trial would violate her right to a jury trial of the Bifurcated Issue. The latter request is DENIED as MOOT, as the matter was not heard before the Court convened and conducted the Issue Conference on January 8, 2026.

Ms. Leone filed a Supplemental Brief in support of her motion on January 20, 2026, a long with a supplement declaration (“Supp. Leone Decl.”).^{*} The Supp Leone Decl. describes at length apparent

efforts to obtain a recording of the proceedings on October 23, 2025 and various issues with doing so. See Supp. Leone Decl., ¶7 *et seq.* However, no transcript or audio recording has been lodged to date. Ms. Leone’s moving papers did not proffer any transcript of the proceedings on October 23, 2025.

A Request for Judicial Notice was filed as well by Ms. Leone on January 20, 2026. The Court need not take judicial notice of the referenced pleadings. Those pleadings are part of the Court’s file and the Court has reviewed them.

Opposition papers were filed on January 20, 2026, including an opposition Declaration Alexander J. Gregory (“Gregory Decl.”). The opposition papers include a request for judicial notice of the Minute Order dated October 23, 2025. The Court need not take judicial notice of the referenced paper. That paper is part of the Court’s file and the Court has reviewed it.

*Although the Court gave Ms. Leone a further opportunity to lodge the recording/transcript, she failed to do so by the deadline given or to date. Moreover, as pointed out in the Opposition, the Court indicated that it would not otherwise entertain any further reply briefing by Ms. Leone. See Gregory Decl., ¶12 *et seq.* Nonetheless, in the exercise of its discretion, the Court has considered the Supplemental Brief and the Supp. Leone Decl.

Analysis

Right to Jury Trial

The right to a jury trial in civil cases under California law is guaranteed by the California Constitution and various statutes. See CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) (“CJER Civ. Pro.—Trial”), § 3.2.

The right to a jury trial for civil actions is generally limited to those causes of action (and their analogues) that were historically triable in a court of law. *Berg v. Pulte Home Corp.* (2021) 67 Cal. App. 5th 277, 289. To determine whether a claim is legal or equitable, a court looks to the “gist” of the action, understood as “the nature of the rights involved and the facts of the particular case.” *Id.*, citing *People v. One 1941 Chevrolet Coupe* (1951) 37 Cal.2d 283, 299.

The right to a jury trial is a cornerstone of the legal system and in the case of a doubt, a court should resolve the issue in favor of the right to a jury trial. *Id.* at § 3.2, citing *Domestic Linen Supply Co., Inc. v. L J T Flowers, Inc.* (2020) 58 Cal. App. 5th 180, 185 (the right to a jury trial “is basic and should be zealously guarded by the courts.”).

The Bifurcated Issue is central to the adjudication of the claims at issue in the operative complaint because the nature and extent of plaintiff’s ownership interest in the entity defendant CMD Saloon, LLC bears directly on her ability to pursue such claims. There is a right to a jury trial on at least some of those claims, such as the claim for Conversion. See *Raedeke v. Gibraltar Sav. & Loan Assn.* (1974) 10 Cal. 3d 665, 672 (a conversion claim for damages is an action at law for which there is a right to a jury trial). Furthermore, it is well established that where legal and equitable issues are joined in the same action, the parties are entitled to a jury trial on the legal issues. *Robinson v. Puls* (1946) 28 Cal.2d 664, 665-666.

And it is apparent that there are factual matters subject to dispute about the nature of the parties’ relationship, the applicability of the Operating Agreement and the management of the subject business that bear on the determination of the Bifurcated Issue.

Accordingly, the Court concludes that Ms. Leone has demonstrated that she had a right to a jury trial on the Bifurcated Issue on which the Bench Trial was set. See *Stofer v. Shapell Industries, Inc.* (2015) 233

Cal. App. 4th 176, 191 (the trial court erred in holding bench trial on the issue of accrual of claims for strict liability and negligence and denying demand for jury trial on the issue, observing that the “factual issues of whether certain causes of action belong to plaintiff or to a prior owner are central to the substantive merits of plaintiff's tort claims.”).

The Court has considered and rejects that the Opposition argument that there is no right to a jury because any interpretation of the subject Operating Agreement vis-à-vis the Bifurcated Issue does not turn on a determination of extrinsic factual matters. See *Garcia v. Truck Ins. Exchange* (1984) 36 Cal. 3d 426, 439 (party was not denied right to jury trial by trial court because “it is solely a judicial function to interpret a written contract unless the interpretation turns upon the credibility of extrinsic evidence, even when conflicting inferences may be drawn from uncontroverted evidence.”).

This is a myopic view of the Bifurcated Issue and the factual matters impacting it. The rights and obligations under the Operating Agreement are only a part of the scope of the Bifurcated Issue, as the Court confirmed with all parties in open court at the Issue Conference. See Order entered January 20, 2026 (“The Court conferred with the parties regarding the Bifurcated Issue and all parties and counsel concurred that the scope of the Bifurcated Issue and the trial thereon is the nature and extent of plaintiff Nicole D. Trippie's ownership interest in the entity defendant CMD Saloon, LLC under the Operating Agreement and otherwise.”).

Waiver of Right to Jury Trial

Having found that Ms. Leone had a right to a jury trial on the Bifurcated Issue, the Court next considers whether she waived that right. The Court concludes that she did.

A civil litigant's right to a jury trial may be waived in the manner proscribed by statute. CJER Civ. Pro.—Trial, § 3.7. Code of Civil Procedure section 631 specifies the ways in which such right to a jury trial be waived. See Code Civ. Proc. § 631(f). Those include “[b]y oral consent, in open court, entered in the minutes.” *Id.* at § 631(f)(3).

That is precisely what happened here. In fact, Ms. Leone concedes that she consented to the setting of the Bench Trial in open court. See Declaration of Defendant Leone filed November 3, 2025 (the “Leone Decl.”), ¶13. No demand for a jury trial was made.

This setting of a court trial without a demand for a jury or objection by Ms. Leone was entered in the minutes of the Court for the proceedings on October 23, 2025 at which the Bench Trial was set:

PLAINTIFF REQUESTS A BIFURCATED COURT TRIAL O THE ISSUE OF THE OPERATING AGREEMENT.
COUNSEL FOR DEAN CAFIERO HAS NO OBJECTION. MS. LEONE IS UNCLEAR AND RAISES THE ISSUE
OF DEPOSITION TESTIMONY.

THE COURT WILL ADDRESS ANY ISSUE WITH DEPOSITION TESTIMONY IN TURN AT THE COURT
TRIAL.

COURT TRIAL SET RE: THE ISSUE OF THE OPERATING AGREEMENT 02/02/26 AT 8:30AM IN DEPT.09.
FURTHER CMC RE: STATUS OF COURT TRIAL 01/07/26 AT 8:30AM IN DEPT.09.

See Minute Order dated October 23, 2025.

Ms. Leone describes having later reconsidered this consent after later more fully considering and weighing “the advantages and disadvantages of a bifurcated bench trial vs. jury trial.” Leone Decl., ¶14. She asserts that she lacked a sufficient understanding of the “procedure or proceedings” such that her consent and any waiver of the right to a jury trial was without sufficient knowledge of the

consequences. *Id.* at ¶15. The Court does not find this credible.

The fact that the only specific reservation expressed by Ms. Leone, as reflected in the minutes, was the impact of possible discovery issues on readiness to proceed with such a court trial cuts against Ms. Leone's position. Ms. Leone had the wherewithal to carefully consider the impact of such a trial setting in light of the discovery posture of the case. She was plainly able to consider the impact of the setting on her litigation rights and its procedural posture. Yet, she failed to demand a jury trial or object to the setting of a court trial.

The Court has considered whether, in its discretion, to permit a jury trial on the Bifurcated Issue. See CJER Civ. Pro.—Trial, § 3.8. The Court has considered the totality of the circumstances and all evidence before the Court as to whether relief from waiver of a jury on the Bifurcated Issue would be just.

Among other things, the Court observes that the adjudication of the Bifurcated Issue involves a narrow issue whose adjudication would have minimal prejudicial impact on Ms. Leone's right to otherwise contest the substance of the claims against her before a jury. The resolution of the issue would put to rest an issue that will streamline the case and reduce the number of issues to be tried, whether before the court or a jury. Moreover, it will eliminate the possibility of a conflict in the determination on a threshold issue that would otherwise ultimately have to be tried both before the court and a jury separately.

The Court does not conclude that relief from waiver would be just and appropriate.

Disposition

The Court finds and rules as follows:

1. The Motion to Vacate Bench Trial is DENIED.
2. The Court shall issue the order after hearing.

4. 9:00 AM CASE NUMBER: C23-03252
CASE NAME: COURTNEY NIELSON VS. DIANA GEORGE
HEARING ON SUMMARY MOTION
FILED BY: NIELSON, COURTNEY
TENTATIVE RULING:

Motion **continued** by the Court to March 2, 2026 at 9:00 a.m.

5. 9:00 AM CASE NUMBER: C24-01160
CASE NAME: DENEA MARHX VS. INTERNATIONAL CHURCH OF THE FOURSQUARE GOSPEL
***HEARING ON MOTION IN RE: TERMINATING SANCTIONS**
FILED BY: MARHX, DENEA
TENTATIVE RULING:

Plaintiff Denea Marhx ("Plaintiff") filed a Motion for 1) Terminating Sanction, or 2) Issue Sanction, and 3) Monetary Sanction on September 10, 2025 (the "Motion for Sanctions"). The Motion for Sanctions was set for hearing on January 26, 2026. The motion was duly served. The motion is opposed.